

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF PAVLYUCHENKO AND OTHERS v. RUSSIA

(Applications nos. 7236/18 and 23 others –
see appended list)

JUDGMENT

STRASBOURG

25 May 2023

This judgment is final but it may be subject to editorial revision.



In the case of Pavlyuchenko and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 4 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants or organisers of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants or organisers of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts); *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and Protocols thereto, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-64, 13 February 2018; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018; *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019; and *Teslenko and Others v. Russia*, nos. 49588/12 and 3 others, §§ 72-74 and 81-82, 5 April 2022, as to administrative escorting to and/or detention in a police station beyond three hours for non-custodial offences, without substantiating the impossibility to

compile an offence report at the rally venue or any exceptional circumstances or another valid ground under the Code of Administrative Offences (CAO) or continued detention after the offence report was compiled; and *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the lack of a prosecuting party in criminal proceedings under the CAO.

V. REMAINING COMPLAINTS

13. In view of the findings in paragraphs 11 and 12 above, there is no need to examine other aspects of the complaints raised by some applicants under Articles 5 and 6 of the Convention, or under Article 11 (applications nos. 7463/18 and 32297/18).

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine the remaining complaints raised by some applicants;

4. *Holds* that there has been a violation of Article 11 of the Convention in relation to the facts described in the appended table;

5. *Holds* that there has been a violation of the Convention and Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see the appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 25 May 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	7236/18 22/01/2018	**Aleksey Georgiyevich PAVLYUCHENKO** 1998	Terekhov Konstantin Ilyich Moscow	Anticorruption rally Vladivostok, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Primorye Regional Court 16/08/2017	Art. 5 (1) - unlawful detention - on 12/06/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
2.	7463/18 25/12/2017	**Igor Valentinovich SHARAPOV** 1966		Protest against the road tax system "Platon" Khimki, 21/05/2017	Article 19.3 § 1 of CAO	fine of RUB 500	Moscow Regional Court 29/06/2017	Art. 5 (1) - unlawful detention - on 21-23/05/2017 escorting to and detention in a police station for and after compiling offence reports	4,000
3.	13248/18 28/02/2018	**Petr Vladimirovich TROFIMOV** 1970	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally St Petersburg, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	St Petersburg City Court 29/08/2017	Art. 5 (1) - unlawful detention – (i) on 12-14/06/2017 escorting to and detention in a police station for and after compiling an offence report; (ii) on 10/06/2019 and 18/06/2019 escorting to and detention in a police station for (re-)compiling an offence report,	5,000, jointly in respect of both applications lodged by the applicant
4.	62551/19 18/11/2019		Peredruk Aleksandr Dmitriyevich St Petersburg	Political protest St Petersburg, 07/06/2019	Article 20.2 § 2 of CAO	fine of RUB 20,000	St Petersburg City Court 17/09/2019		

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	
5.	26188/18 18/05/2018	**Oleg Sergeyevich MASTRYUKOV** 1992	Zhdanov Ivan Yuryevich Vilnius	Distribution of leaflets to support A. Navalnyy Moscow, 09/07/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 20/11/2017	Art. 5 (1) - unlawful detention - on 09/07/2017 escorting to a police station for compiling an offence report	4,000
6.	27592/18 24/05/2018	**Olga Mikhaylovna YATSKOVA** 1997	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Rostov-on-Don, 07/10/2017	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Rostov Regional Court 28/11/2017		3,500
7.	28369/18 08/06/2018	**Timur Vladimirovich NESKUCHAYEV** 1997	Zhdanov Ivan Yuryevich Vilnius	Distribution of leaflets to support A. Navalnyy Moscow, 09/07/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/12/2017	Art. 5 (1) - unlawful detention - on 09/07/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	29525/18 13/06/2018	**Denis Islamovich BAKAYEV** 1981	Memorial Human Rights Centre Moscow	Opposition rally Moscow, 12/07/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 22/01/2018	Art. 5 (1) - unlawful detention - on 12/07/2017 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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9.	29548/18 08/06/2018	**Anton Vladimirovich SIDOROV** 1990	Romanov Pavel Valeryevich Cheboksary	Opposition rally Cheboksary, 29/10/2017	Article 20.2 § 2 of CAO	32 hours of community work	Supreme Court of Chuvashia Republic 12/12/2017		3,500
10.	30493/18 18/06/2018	**Sergey Aleksandrovich KAZAKOV** 1979	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Orenburg, 13/10/2017	Article 20.2 § 2 of CAO	40 hours of community work	Orenburg Regional Court 19/12/2017		3,500
11.	32297/18 21/06/2018	**Vitaliy Aleksandrovich NAKONECHNIKOV** 1982	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Moscow, 09/07/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/12/2017	Art. 5 (1) - unlawful detention - on 09/07/2017 escorting to a police station for compiling an offence report	4,000
12.	32587/18 25/06/2018	**Irina Aleksandrovna FAYZULINA** 1976	Laptev Aleksey Nikolayevich Moscow	Opposition rally Berezniki, 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 25/12/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
13.	34821/18 16/07/2018	**Timofey Igorevich DEMIDENKO** 1991	Zhdanov Ivan Yuryevich Vilnius	Anticorruption rally Moscow, 12/06/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 16/01/2018	Art. 5 (1) - unlawful detention - on 12/06/2017 escorting to and detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	35400/18 17/07/2018	**Irina Vladislavovna SAMARINA** 1959	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Stavropol,	Article 20.2 § 5 of CAO	fine of RUB 10,000	Stavropol Regional Court 17/01/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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				07/10/2017					
15.	36988/18 27/07/2018	**Anastasiya Mikhaylovna DEYNEKA** 1998	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Rostov-on-Don, 24/12/2017	Article 20.2 § 8 of CAO	8 days of detention	Rostov Regional Court 27/01/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
16.	37059/18 16/07/2018	**Albert Maratovich RAYANOV** 1990	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Rally to support A. Navalnyy Novosibirsk, 30/09/2017 Rally against the pension reform Novosibirsk, 09/09/2018	Article 20.2 § 5 of CAO Article 20.2 § 8 of CAO	fine of RUB 5,000 30 days of detention	Novosibirsk Regional Court 16/01/2018 Novosibirsk Regional Court 14/09/2018		5,000, jointly in respect of both applications lodged by the applicant
17.	41917/18 17/08/2018			Rally to support L. Volkov and A. Navalnyy Novosibirsk, 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 6,000	Novosibirsk Regional Court 20/02/2018		
18.	41375/18 29/07/2018	**Veronika Viktorovna OVSYANNIKOVA** 1999	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Rally to support L. Volkov and A. Navalnyy Novosibirsk, 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 30/01/2018		3,500

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19.	43224/18 30/08/2018	**Roman Yevgenyevich KARMATSKIY** 1992	Zhdanov Ivan Yuryevich Vilnius	Distribution of leaflets to support A. Navalnyy Moscow, 20/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/03/2018	Art. 5 (1) - unlawful detention - on 20/10/2017 escorting to a police station for compiling an offence report	4,000
20.	46237/18 18/09/2018	**Anna Borisovna YEREMEYEVA** 1994	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Rostov-on-Don, 24/12/2017	Article 20.2 § 8 of CAO	fine of RUB 75,000	Rostov Regional Court 20/03/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,500
21.	50929/18 09/10/2018	**Daniil Konstantinovich BEBEKIN** 1999	Chernyavskaya Andzhelika Viktorovna Oktyabrskiy	Rally to support L. Volkov and A. Navalnyy Novosibirsk, 07/10/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Novosibirsk Regional Court 10/04/2018		3,500
22.	54858/18 01/11/2018	**Genrikh En FON DESTIO** 1995	Sergeyeva Irina Vadimovna Moscow	Event to support Telegram Moscow, 16/04/2018	Article 20.2.2 § 1 of CAO	fine of RUB 10,000	Moscow City Court 30/05/2018	Art. 5 (1) - unlawful detention - on 16-17/04/2018 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
23.	58018/18 28/11/2018	**Nadezhda Nikolayevna CHURAKOVA** 1961	Zhdanov Ivan Yuryevich Vilnius	Distribution of leaflets to support A. Navalnyy Moscow, 07/01/2018	Article 20.2 § 5 of CAO	fine RUB 10,000	Moscow City Court 06/06/2018	Art. 5 (1) - unlawful detention - on 07/01/2018 escorting to a police station for compiling an offence report	4,000

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24.	58050/18 20/11/2018	**Stepan Sergeyevich VYBOCH** 1994	Sergeyeva Irina Vadimovna Moscow	Event to support Telegram Moscow, 16/04/2018	Article 20.2.2 § 1 of CAO	fine of RUB 10,000	Moscow City Court 24/08/2018	Art. 5 (1) - unlawful detention - on 16-17/04/2018 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.